



CHAPTER clxx.

An Act to incorporate the Clergy Mutual Assurance Society and to provide for the management of its affairs and for other purposes. A.D. 1914.
[7th August 1914.]

WHEREAS the Clergy Mutual Assurance Society (hereinafter called "the Society") was established in the year one thousand eight hundred and twenty-nine on principles of mutual assurance under the laws then in force relating to friendly societies with the object of raising by means of the contributions of the members thereof a fund for the mutual relief of each other their wives children relations or nominees in sickness infancy advanced age widowhood and other natural states and contingencies the occurrence of which might be calculated by way of average and for the lawful assurance of money to be paid on the death of members or other persons and for all such other assurances on lives survivorships contingencies and events dependent on or connected with life or otherwise as might by law be made or effected:

And whereas the Society is a society not limited by law as to its scope and operation in respect of the amount for which policies of assurance payable at death may be granted and at the passing of the Friendly Societies Discharge Act 1854 the Society granted and effected such policies for sums exceeding one thousand pounds and was accordingly one of the societies affected and provided for by that Act and is thereby empowered to make such new rules or alterations in rules as shall not be repugnant to law without being required to submit the same to the Registrar of Friendly Societies: 17 & 18 Vict.
c. 56.

And whereas by the Clergy Mutual Assurance Society Act 1877 the Clergy Mutual Assurance Society Act 1890 and the 40 & 41 Vict.
c. xlix.
53 & 54 Vict.
c. cx.
[Price 2s.] A 1

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. Clergy Mutual Assurance Society Act 1898 further privileges
61 & 62 Vict. were conferred upon the Society:
c. cliv.

And whereas the Society is governed by rules made pursuant to section 4 of the Friendly Societies Discharge Act 1854 which rules have from time to time been altered by resolution duly made and passed by the Society:

And whereas the business of the Society has been carried on since the establishment thereof and has greatly increased and the Society has now a premium income exceeding two hundred and seventy thousand pounds per annum a total income exceeding four hundred and eighty thousand pounds per annum and assets exceeding four million six hundred and seventy thousand pounds:

And whereas many of the provisions of the Friendly Societies Acts relating to the Society are antiquated obsolete and not suitable for the regulation of a body of the magnitude of the Society and for this and other reasons it is expedient that the Society should be incorporated and that the powers provisions and rules under which the affairs of the Society are managed and transacted should be amended as by this Act provided:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title. 1. This Act may be cited as the Clergy Mutual Assurance Society Act 1914.

Interpretation. 2. In this Act and in the rules contained in the schedule to this Act or other the rules for the time being of the Society the following words and expressions shall have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

The expression “the Society” shall mean the Clergy Mutual Assurance Society;

The expressions “the directors” “the chairman” “the actuary” “the consulting actuary” “the manager” and

“the secretary” shall mean respectively the directors the person for the time being presiding on the board of directors the actuary the consulting actuary the manager and the secretary of the Society all for the time being; The expression “the laws of the Society” shall mean the provisions of this Act; The expression “the rules” shall mean the rules of the Society for the time being in force; The word “policy” shall mean the instrument evidencing the contract by the Society for the payment of any money on the happening of any contingency or event whether dependent on or connected with life or not or for the payment of any annuity and the word “assurance” shall mean such contract; The word “member” and the expression “member of the Society” shall mean the person if living who shall have effected with the Society any assurance in the benefit of which he shall retain an interest whether such assurance was effected by him before or after the passing of this Act and notwithstanding that the benefit thereof may be encumbered or otherwise partially disposed of or vested in a trustee If more than one person shall have effected the same assurance the word “member” and the expression “member of the Society” shall mean such one of them if living as shall from time to time be nominated for that purpose by notice in writing signed by all of them and sent to the Society or failing such nomination that one of such of them as shall be living whose name appears first in the policy In the case of an assurance effected by any corporation aggregate the word “member” and the expression “member of the Society” shall mean the person duly appointed by such corporation under seal for that purpose But whether the assurance shall be effected by one person or by more than one person or by any such corporation as aforesaid the word “member” and the expression “member of the Society” shall not mean or include any person claiming by transfer whether by operation of law or not; The word “lands” shall mean and include lands houses buildings tenements messuages and hereditaments of every description or tenure and (unless expressly restricted)

A.D. 1914.
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[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914.

wherever situated and every vested contingent reversionary or other estate right or interest therein or issuing there-out or relating thereto respectively;

The word "existing" shall mean existing immediately before the passing of this Act;

The expression "the Friendly Societies Acts" shall mean the following Acts 10 Geo. IV. ch. 56 4 & 5 Will. IV. ch. 40 3 & 4 Vict. ch. 73 9 & 10 Vict. ch. 27 13 & 14 Vict. ch. 115 15 & 16 Vict. ch. 65 16 & 17 Vict. ch. 123 and 17 & 18 Vict. ch. 56.

Repeal of
Acts and
rules.

3. Subject to the provisions of this Act the Clergy Mutual Assurance Society Act 1877 the Clergy Mutual Assurance Society Act 1890 and the Clergy Mutual Assurance Society Act 1898 and the existing rules of the Society are hereby repealed without prejudice to anything done or suffered under the said Acts or rules or any of them and the Society shall cease to be under or subject to the Friendly Societies Acts.

Incorporation of
Society.

4. The existing members of the Society and all persons who shall become members of the Society shall be and are hereby incorporated by the name of "The Clergy Mutual Assurance Society" with perpetual succession and a common seal with such constitution objects and powers and subject to such regulations for its government and the management of its business and affairs (including therein the management of its property) as are contained in this Act and the rules.

Objects of
Society.

5. The objects of the Society are—

- (i) To grant all such assurances (with or without the right to participate in the surplus or profits of the Society) for the payment of money on the happening of any contingency or event whether dependent on or connected with life or not and to grant all such annuities as may by law be granted and as the directors may think fit to grant:
- (ii) To re-assure the whole or such part of any of the risks of the Society and undertake such risks by way of re-assurance (being in all cases risks in respect of which the Society could for the time being themselves grant assurances) as the directors may from time to time think fit.

6. The Society shall have power—

A.D. 1914.

- (i) To grant all such assurances and annuities and to effect all such re-assurances and undertake all such risks as aforesaid : Powers of Society.
- (ii) To sue and be sued by its corporate name :
- (iii) To acquire and hold lands for the purposes of this Act without any licence in mortmain :
- (iv) To sell exchange mortgage charge lease manage farm maintain build upon develop or otherwise improve dedicate to the public or otherwise deal with or dispose of the lands of the Society or any part thereof or any estate or interest therein or relating thereto as the directors think fit :
- (v) To borrow money with or without giving security for the repayment thereof with or without interest thereon or any premium and whether for a term or not And subject to any statutory provisions for the time being in force relating to the amalgamation of assurance companies or the transfer (whether on purchase or not) of the business of one such company to another to enter into and carry into effect any contract or agreement for purchasing acquiring or taking over all or any of the business property rights and liabilities of or amalgamating with any other society association or company carrying on any business within the objects of the Society or for undertaking paying and performing all or any of the assurances annuities and engagements of any such other society association or company.

7. The Society or any trustee on its behalf shall (subject to the provisions of this Act) continue to hold and be entitled to enjoy and recover all property of every description (including things in action) which immediately before the date of the passing of this Act belonged to or was vested in the Society or to or in a trustee on its behalf or to which the Society or a trustee on its behalf was entitled and any person for the time being holding any property or investment as a trustee for the Society shall with regard thereto act in all respects under and in accordance with the directions of the directors of the Society. Saving of rights to property.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914.
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Saving for
owners of
existing
assurances.

8. Notwithstanding such repeal as aforesaid and any other provisions of this Act all existing assurances of the Society shall entitle the persons entitled to the benefit thereof to the same security rights benefits and remedies as against the Society as incorporated and as to nomination and otherwise as they would have had against the Society before its incorporation or otherwise and the Society as incorporated shall have the same protection and security as it would have had if not incorporated and the said existing assurances shall after the incorporation of the Society be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or to which they were held immediately before such incorporation and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the said assurances and trustees and all other holders in any representative or fiduciary capacity of any existing assurances of the Society may hold dispose of or otherwise deal with the said assurances after the incorporation of the Society in all respects as they might have held disposed of or otherwise dealt with the same assurances before such incorporation.

Saving for
transactions
and actions.

9. Notwithstanding such repeal as aforesaid and any other provisions of this Act—

(a) All conveyances leases deeds mortgages bonds contracts agreements securities awards appointments notices and other acts and things made and entered into executed given or done by with or to the Society or any person on its behalf and in force at the date of such repeal as aforesaid shall be as valid and effectual to all intents in favour of against and with reference to the Society as incorporated as if this Act had not been passed:

(b) Any action arbitration or other proceeding or cause of action arbitration or other proceeding pending or existing at the date of such repeal as aforesaid by with against or in favour of the Society or any person on its behalf shall not abate or be prejudicially affected by the passing of this Act but on the contrary may be continued or commenced and carried on by with against or in favour of the

Society as incorporated as if this Act had not been A.D. 1914.
passed:

- (c) All books and documents of or concerning the Society which if this Act had not been passed would have been admitted in evidence shall be admitted in evidence as if this Act had not been passed.

10.—(1) The persons who immediately before the passing of this Act were the directors of the Society shall subject to the laws of the Society and of the rules be the directors of the Society as incorporated under this Act. Existing directors and officers to continue.

(2) All officers servants agents and others in the employment of the Society immediately before the passing of this Act shall continue to hold their respective offices and employments under the Society as incorporated under this Act with the like rights and privileges and subject to the like conditions and obligations as if they had been appointed to their respective offices and employments under this Act.

11. The government direction and administration of the business and affairs of the Society and the appointment and removal of the officers trustees agents and others (other than those prescribed by the rules to be appointed by the members) connected with the Society or its affairs or property shall be vested in the directors who shall all be members of the Society and shall be of such number and have such qualifications and be continued appointed or elected in such manner and with such powers and duties as shall be prescribed by the rules. Government and direction of Society's affairs vested in directors.

12. The Society may from time to time with the sanction of a special general meeting of the members change its name but no such change of name shall be effective until it is advertised in the London Gazette and no such change of name shall affect any rights or obligations or render defective any legal proceedings instituted or to be instituted by or against the Society and any legal proceedings may be continued or commenced against the Society by its new name that might have been continued or commenced against the Society by its former name. Power to change name.

13. The principal office of the Society shall be in the administrative county of London unless and until it shall be otherwise determined at a special general meeting of the members. Principal office.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

- A.D. 1914. Annual general meetings of Society. 14. An annual general meeting of the members shall be held in the administrative county of London in every year upon such date as may be appointed in accordance with the rules when the directors shall present a report on the business and affairs of the Society and such other business shall be transacted as may be prescribed by the rules.
- Special general meetings. 15. Special general meetings of the members shall be held at such place as the directors may from time to time think fit and such meetings may be called and held under such conditions as may be prescribed by the rules.
- Rates of contributions how to be regulated. 16. The rates of contributions or premiums for assurances to be charged by the Society shall be settled or regulated upon such terms or according to such tables as the directors may approve with the concurrence of the actuary or consulting actuary (if any).
- Alterations in tables of contributions. 17. No alterations shall be made in the tables of contributions or premiums without the concurrence of the actuary or consulting actuary (if any) provided that when any alteration shall be made in the tables of contributions or premiums neither the Society on the one hand nor the members on the other shall be entitled to require that those altered contributions or premiums shall apply to assurances already in existence.
- Members to have a voice in affairs of Society. 18. Every member the contributions or premiums on whose policy are paid regularly in terms of the conditions expressed in his policy and who acts in conformity with the laws of the Society and the rules shall have in accordance with such laws and rules a voice in the affairs of the Society.
- Books of Society to whom to be open. 19. The books of the Society shall be open at all convenient times to the inspection of any of the directors who may choose to inspect the same but it shall not be in the power of any member other than a director to inspect the books without having first obtained an order to that effect from the directors or from an annual general meeting or a special general meeting of members and his inspection shall extend only so far as such order may expressly authorise or direct.
- Authentication of documents. 20. All deeds and formal instruments or documents of every description which require to be granted and executed by the Society shall be valid and sufficient when sealed with

the common seal of the Society in the presence of and signed A.D. 1914.
by two directors and countersigned by the actuary manager or
secretary or by such other officer as the directors may from
time to time authorise in that behalf:

Provided that—

- (a) All policies shall be valid and sufficient if signed by two directors and countersigned by the actuary manager or secretary or by such other officer as aforesaid;
- (b) All contracts for sale or purchase shall be valid and sufficient if signed by the actuary manager or secretary and all tenancy agreements shall be valid and sufficient if so signed or if signed by such other person as may from time to time be duly authorised in that behalf by the directors;
- (c) All cheques and orders on the Society's bankers shall be valid and sufficient if signed by two directors and countersigned by the actuary manager or secretary or by such other officer as aforesaid; and
- (d) All receipts for premiums and other annual or periodical payments in favour of the Society and for any other payment made to the Society in the ordinary course of business shall be valid and sufficient if signed by the actuary manager or secretary or by such other officer as aforesaid.

21. The directors may open banking accounts and subsidiary banking accounts in the name of the Society with such bank or banks as they may select. Each subsidiary account shall be sufficiently distinguished as a subsidiary account by an appropriate name or number and shall be operated on by such of the directors officers or agents of the Society as the directors may authorise to that effect and under such regulations and conditions as may be made from time to time by the directors.

Banking
accounts may
be opened.

22. The funds of the Society so far as they are not required to satisfy the immediate claims on and expenses of the Society may be laid out and invested by the directors in the name or under the control of the Society or in any case in which the directors consider such a course necessary or

Investments.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. — advisable in the names of not less than two trustees on behalf of the Society in any of the ways for the time being authorised by the rules and the directors may also from time to time vary any such investments.

Vesting of
property in
Society.

23.—(1) On the passing of this Act all such property real and personal including interests and rights in to or out of or in relation to property real and personal and including obligations securities and things in action and the right to exercise and execute powers as may belong to or be held in trust for or be exerciseable by any trustee for the Society (except as hereinafter mentioned) shall without any conveyance transfer assurance or other document being made or required and without the licence or consent of any person or corporation being for that purpose necessary or required and without causing a forfeiture notwithstanding that any such licence or consent be not obtained pass to and be vested in and exerciseable by the Society as incorporated under this Act for all the estate and interest and with all the powers of the Society and of the trustees for the Society therein and for all purposes Except that as to the following classes of property this subsection shall only apply to the equitable estate or interest therein (viz.):—

- (i) Copyhold lands;
- (ii) Property the legal estate or interest wherein is not transferable by deed; and
- (iii) Stocks shares and debentures transferable only in books kept by a company or other body or in manner directed by or under Act of Parliament.

(2) Any trustee in whose name any property of any of the three classes lastly hereinbefore referred to may be standing shall as soon as may be when and as required by the directors by proper conveyance transfer assurance or other means transfer the same to the Society or as the directors may direct.

(3) This section shall not unless the Society shall by deed otherwise declare operate to vest in the Society any leasehold or freehold reversion or other estate or interest in any property if the vesting thereof in the Society would cause a release or merger of any right or estate or interest of the Society But if the Society shall so as aforesaid otherwise declare the same shall vest in accordance with and under subsection (1) of this section except that such vesting shall take place on the

[4 & 5 GEO. 5.] *Clergy Mutual Assurance Society* [Ch. clxx.]
Act, 1914.

execution of such declaration and subsection (2) of this section shall apply thereto accordingly. A.D. 1914.

(4) In place of the stamp duties payable in respect of the vesting effected by subsection (1) of this section (including any vesting pursuant to any such declaration as is referred to in subsection (3) of this section) there shall be levied and raised for the use of His Majesty His heirs and successors a stamp duty of five pounds which shall be impressed upon a King's Printer's copy of this Act and the Society shall produce the stamped copy to the Commissioners of Inland Revenue within six months after the passing of this Act.

(5) The registrars of the Land Registry and of any registry to which the Yorkshire Registries Act 1884 relates shall upon the application of the Society and the production to them respectively of a King's Printer's copy of this Act stamped as hereinbefore provided and upon payment of the appropriate fee substitute in the register the name of the Society for the name of any such trustee as aforesaid.

24. The funds of the Society shall alone be liable to answer and make good all claims and demands in respect of every policy of assurance and grant of annuity and no member director or officer of the Society or their respective executors or administrators shall be subject or liable to any action suit claim or demand whatsoever in respect of any such policy of assurance or grant of annuity or any other liability or debt of the Society.

Limitation
of liability of
members
directors and
officers.

25. The directors trustees (if any) officers clerks and servants of the Society shall be indemnified out of the funds of the Society from and against all costs charges damages losses and expenses which they shall or may incur or sustain in the execution of their respective offices and duties unless the same shall happen by their own wilful neglect or default and none of them shall be answerable for any act or default of any other of them or of any banker or other person with whom any moneys or property of the Society may be deposited for safe custody or otherwise or for the insufficiency of any security or for any other loss unless the same shall happen by or through their own wilful neglect or default respectively The trustees (if any) officers clerks and servants of the Society and every person employed by the Society shall be absolutely exonerated from all responsibility in respect of the consequences of any-

Indemnity of
directors and
others.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. — thing done under or in accordance with any resolution or instruction of the directors.

Liability of funds.

26. The whole of the funds of the Society shall be jointly chargeable for the support of all assurances of the Society and shall be applied for or towards the purposes in this Act or in the rules mentioned and in defraying the necessary expenses attending the management of the Society including the remuneration of the directors the salaries and other remunerations and pensions (if any) of other officers clerks and servants of the Society as such salaries and last-mentioned remunerations and pensions (if any) may be from time to time fixed by the directors and the charges for legal expenses and all other matters incidental to the business of the Society or which may promote its interests.

Formation of special funds.

27. The directors may from time to time form special or reserve funds for any special purpose they may determine and may carry to any such fund moneys funds and property of the Society sufficient for that purpose and such special or reserve funds shall be dealt with in such manner as the directors may from time to time determine.

Power to minors to effect assurances with Society.

28. A minor may effect assurances with the Society and may if over sixteen years of age by himself and if under that age by his parent or guardian execute all instruments give all necessary discharges and receipts and enjoy all the privileges and shall be liable to all the responsibilities appertaining to members of full age (except that a person while a minor shall not be a director or trustee or a member of any committee of the Society or hold office as a manager or treasurer of the Society) notwithstanding his incapacity or disability in law to act for himself.

Society not to be bound by trusts.

29. The Society shall not be bound to see to the execution of any trust whether express implied or constructive to which the moneys due under any policy granted by the Society may be subject and a discharge of the Society in respect of such moneys by the person in whom the right thereto may be legally vested shall in all cases be a sufficient discharge and exoneration to the Society of and from all liability in respect thereof notwithstanding any trust to which such moneys may then be subject and whether or not the Society has had notice of such trust.

30. The person in whom the benefit of any assurance is for the time being legally vested whether such person is beneficially entitled thereto or holds the same as mortgagee of or as trustee for any other person may (unless being a mortgagee or trustee he is expressly prohibited from so doing by the terms of his mortgage or trust) surrender in whole or in part to the Society the benefit of such assurance including any bonus additions thereto or any such bonus additions separately either for a cash payment or in consideration of the assurance being converted into a paid-up assurance for a reduced amount or in exchange for any paid-up or other assurance to be substituted for the original assurance or (where any such bonus addition is separately surrendered) in consideration of a permanent reduction in the premium on the assurance to which such addition was made or may (except as aforesaid) make any such surrender as aforesaid for any other consideration or may otherwise deal with such assurance and bonus additions as may be agreed between such person and the directors and if the benefit of any assurance is legally vested in the Society as mortgagee or charged to it by way of deposit or otherwise the power of sale vested in the Society by virtue of such mortgage or charge may be exercised by the surrender to itself of such assurance the Society giving credit or otherwise accounting for the surrender value of such assurance Any surrender or agreement made or entered into under this section shall be valid and effectual in all respects.

A.D. 1914.

Power to
surrender
and deal with
assurances.

31. The directors shall have power if and when they shall think fit to assign to any assurance effected on terms of participation in profits and becoming a claim before the expiration of any current quinquennial period a proportionate or interim bonus in respect of the time elapsed since the last allotment of bonus and to make provision as to the time and method of paying or crediting such proportionate or interim bonus to the person entitled to the benefit of such assurance.

Interim
bonus.

32. The rules in the schedule hereto shall be the rules of the Society and they or other the rules for the time being of the Society may be altered by any repeal or amendment thereof or of any of them or by any addition thereto in the following manner and subject to the following conditions:—

Alteration of
rules.

- (1) If such alteration be recommended at a special meeting of the directors by not less than two-thirds of the

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914.
—

whole number of directors of the Society and subsequently approved at a special general meeting of the members of the Society; or

- (2) If such alteration be approved by members entitled under the rules to not less than two-thirds of the total number of votes represented by the members present and voting at a special general meeting to be held upon a requisition signed by twenty-five or more members owning among them policies for an aggregate amount assured of not less than fifty thousand pounds (exclusive of bonus additions) and containing a copy of the proposed alterations which meeting the directors shall convene for such date as they may determine not being later than three months after the receipt at the principal office of the Society of such requisition:
- (3) A copy of the alterations recommended by the directors or (as the case may be) proposed by the persons making the requisition shall be sent by the directors actuary manager or secretary by post to the members of the Society two weeks at least before the day appointed for holding the special general meeting and the directors shall give notice of such proposed alterations by advertisement in not less than three London daily newspapers two weeks at least before the day appointed for holding such meeting.

Service of
process &c.
on Society.

33. In all cases wherein it may be necessary for any person to serve any notice writ or other legal process on the Society in any action or proceeding which may be instituted or raised against the Society or to which the Society is a party service thereof respectively on the actuary manager or secretary either personally or by leaving the same at the principal office of the Society shall be deemed good service of the same on the Society.

Affidavits
&c. on behalf
of Society.

34. Any affidavit statutory or other declaration or other similar document required from or by the Society may be made and verified by the actuary manager or secretary or by any director of the Society for and on behalf of the Society.

35. Nothing in this Act shall be deemed to exempt the Society from the provisions of the Assurance Companies Act 1909 or from the provisions of any general Act passed during the present or any future session of Parliament affecting assurance companies formed previously to the passing thereof. A.D. 1914.
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Saving for
general Acts.

36. The costs charges and expenses preliminary to and of and incidental to preparing obtaining and passing this Act shall be paid by the Society out of their funds. Costs of
Act.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. The SCHEDULE referred to in the foregoing Act.

RULES OF THE CLERGY MUTUAL ASSURANCE SOCIETY.

MEETINGS OF MEMBERS OF THE SOCIETY.

Rule I.

Date of annual general meeting.

An annual general meeting of members shall be held annually in the administrative county of London at such place and time as may be fixed by the directors fourteen days' notice of the day and hour of every such meeting being given by advertisement in three or more of the London daily newspapers.

Business of annual general meeting.

The business to be transacted at every annual general meeting shall be the presentation and consideration of the report of the directors on the business and affairs of the Society ending on the previous thirty-first day of May accompanied by a revenue account and balance sheet in the form prescribed by the public Acts dealing with life assurance companies the election of directors (subject to and in accordance with the provisions of Rule III.) the auditor and (if the appointment of such an officer be recommended by the directors) the consulting actuary. The auditor and the consulting actuary (if any) shall hold office until the date of the annual general meeting next following that at which they were appointed and shall then retire from office unless they shall respectively be re-elected. All other business shall be considered as special and shall not be transacted at any annual general meeting unless notice shall have been given as hereinafter provided in the case of a special general meeting of members.

Election of auditor and consulting actuary.

The auditor and the consulting actuary (if any) holding office at the date of an annual general meeting shall be eligible for re-election to their respective offices but no other person shall be eligible for appointment as auditor or as consulting actuary unless notice in writing of the intention to propose him for the office shall have been given by some member to the actuary manager or secretary at the office of the Society not later than the 1st of June next before the day of the annual general meeting. All vacancies occurring in the offices of auditor or consulting actuary before the period of the annual general meeting may be filled up at a special meeting of the directors convened for the purpose but the persons appointed to fill any such vacancy shall only hold office until the next following annual general meeting unless they shall then be re-elected.

[4 & 5 GEO. 5.] *Clergy Mutual Assurance Society* [Ch. clxx.]
Act, 1914.

A special general meeting of members may be convened by the Board at any time fourteen days' notice being given of the place time and purpose of such meeting by advertisement in three or more of the London daily newspapers No business other than that stated in the notice convening the same shall be transacted at any such special general meeting.

A.D. 1914.
Special general meetings.

The president of the Society or in his absence the vice-president or in the absence of both the chairman of the directors or in his absence the deputy-chairman shall be entitled to take the chair at every general meeting or if there be no president or vice-president chairman or deputy-chairman or if at any such meeting none of them shall be present within fifteen minutes after the time appointed for holding such meeting the members present shall choose another director as chairman or if no director be present or if all the directors present decline to take the chair then the members present shall choose one of their number to be chairman.

Chairman of meetings.

The chairman of any general meeting may with the consent of the meeting adjourn the same from time to time but no business shall be transacted at any such adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.

Adjournment.

VOTING POWERS AND POLL.

Rule II.

All questions at any meeting of members shall be decided by a majority of the votes of the members then and there present and voting thereat unless a poll is demanded and granted in the manner following In case of an equality of votes the chairman shall have a second or casting vote.

Voting at meetings.

Every member (as defined by the laws of the Society) shall be entitled to one vote and every member who holds a life assurance shall be entitled to one additional vote if the aggregate sum assured exclusive of additions thereto by bonus amounts to £1500 but does not amount to £2500 to two additional votes if such aggregate sum amounts to £2500 but does not amount to £3500 to three additional votes if such aggregate sum amounts to £3500 but does not amount to £5000 and to four additional votes if such aggregate sum amounts to or exceeds £5000.

Qualification for voting.

Upon any difference of opinion (save as to the election of chairman or as to adjournment) at any general meeting any five members present and entitled to vote may demand a poll by writing signed by them and delivered to the chairman of the meeting within half an hour after he shall have announced the decision of the meeting and

Poll may be demanded.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. — the poll shall be thereupon granted but unless a poll is so demanded a declaration by the chairman of the meeting that a resolution has been carried and an entry to that effect in the minute book shall be sufficient evidence of the fact without proof of the number or proportion of votes recorded in favour of or against such resolution The demand for a poll shall not prevent the continuance of a meeting for the transaction of business other than the matter on which the poll has been demanded.

Mode of
taking poll.

If a poll be demanded it shall be taken in such manner and at such place and time not being less than three days after the meeting as the chairman of the meeting shall direct The result of a poll shall be deemed to be a resolution of the meeting.

DIRECTORS.

Rule III.

Management.

The management of the business and affairs of the Society (including therein the management of the property of the Society) shall be vested in the directors and the directors in addition to the powers and authorities by the laws of the Society expressly conferred upon them may exercise all such powers and do all such acts and things as may be exercised or done by the Society and are not hereby or by statute directed or required to be exercised or done by the members at a meeting of the members of the Society but subject nevertheless to the provisions of any Act of Parliament and of the rules of the Society for the time being in force provided that no rule shall invalidate any act of the directors done before such rule was made which would have been valid if such rule had not been made.

Number of
directors.

The number of directors holding office as such at the date of the passing of the Clergy Mutual Assurance Society Act 1914 shall continue until reduced to twelve by death or by vacation of office otherwise than on retirement in rotation Vacancies occurring by death or by vacation of office otherwise than as aforesaid shall not be filled up until the number of the directors becomes reduced to less than twelve and thereafter the number shall be such as may from time to time be determined by the members in annual general meeting not being more than twelve or less than ten Of the whole number of the directors five at least shall be chosen from the clergy.

Qualification.

The qualification of a director shall be the holding as a male member of an assurance on his own life to the amount of £1000 or upwards not including additions thereto (if any) by way of bonus.

Office of
director how
vacated.

The office of a director shall be vacated—

If he ceases to hold such an assurance as above ;

If he be or become a director auditor or officer of any other life assurance society or company ;

[4 & 5 GEO. 5.] *Clergy Mutual Assurance Society* [Ch. clxx.]
Act, 1914.

If he be or become lunatic or of unsound mind ; A.D. 1914.

If he have a receiving order made against him or become a bankrupt or compound or make an arrangement with his creditors ;

If he shall in writing resign his office and the directors shall pass a resolution that he has thereby vacated his office.

The directors shall have power to decide whether a director has or has not vacated his office under the above conditions.

At each annual general meeting of the members three directors shall retire from office The directors to retire shall in default of agreement between them be those who have been longest in office or shall if necessary be selected by ballot from amongst those who have been longest in office For the purposes of this rule the period of a director's term of office shall be computed from the date of his last preceding election. Annual retirement.

A director retiring in rotation as above shall be immediately eligible for re-election and shall for all the purposes of the annual general meeting at which he retires be considered to continue in office until the conclusion of such meeting. Director retiring by rotation eligible for re-election.

Subject to the foregoing provisions of this rule the members shall at each annual general meeting fill up the vacancies occurring at that meeting by the retirement of directors in rotation and any other vacancy in the office of director which shall since the date of the last preceding annual general meeting have occurred otherwise than by retirement in rotation and shall not have been filled up by the directors under the subsequent provisions of this rule Any director retiring in rotation whose place is not filled up shall (unless the members shall at the meeting at which he retires resolve subject to the provisions of this rule that the whole number of directors shall be reduced) be deemed to have been re-elected as a director. Filling up vacancies in office of director.

Any member duly qualified under the foregoing provisions of this rule shall be eligible for election as a director provided that notice in writing of the intention to propose him for the office shall have been given by some member to the actuary manager or secretary at the office of the Society not later than the first of June next before the day of the annual general meeting Provided that no such notice shall be required as a condition of the re-election of a director retiring in rotation. Election of directors other than those retiring.

The directors may act notwithstanding any casual vacancy in their body. Casual vacancy.

Any vacancy occurring among the directors otherwise than by retirement in rotation before the period of the annual general meeting may be filled up by directors.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. — may be filled up at a special meeting of the directors convened for the purpose but any director so elected shall retain his office so long only as the vacating director would have retained the same if no vacancy had occurred.

Remunera-
tion of
directors.

The directors shall have power to award annually a sum not exceeding three thousand pounds clear of deduction for income tax out of the funds of the Society as remuneration for their services and the sum awarded shall be divided among the directors in such manner and proportions as they shall think fit.

POWERS OF DIRECTORS.

Rule IV.

Powers and
duties of
directors.

The directors in addition to and without prejudice to any general and particular powers given by the laws of the Society and by these rules shall also have the following powers:—

- (1) To direct and control the accumulation and investment of the funds of the Society as provided in Rule XI.;
- (2) To make such regulations and byelaws for their own guidance in the management of the affairs of the Society as they may think fit so that such regulations and byelaws be not inconsistent with the laws of the Society or the rules;
- (3) To regulate from time to time the terms and conditions that shall attach to policies issued by the Society;
- (4) To call for such evidence as they may deem necessary of all claims against the funds of the Society and upon their being satisfied of the justice of such claims to direct the payment thereof;
- (5) To nominate and appoint the patrons president and vice-president of the Society;
- (6) To appoint remove or suspend any officer* (other than the auditor or consulting actuary appointed by the members under Rule I.) they may consider necessary for the management of the business and the superintendence and management of the funds assets and effects of the Society;
- (7) To do all such other things as are incidental or conducive to the management of or carrying on of the business or affairs of the Society.

Seal.

The directors shall forthwith obtain a seal which shall be the common seal of the Society and they shall provide for its safe custody and the seal shall never be used except by the authority of the directors or a committee of the directors and in the presence of two directors at least who shall sign every instrument to which the seal

[4 & 5 GEO. 5.] *Clergy Mutual Assurance Society* [Ch. clxx.]
Act, 1914.

shall be affixed and every such instrument shall be countersigned by such officer as the directors from time to time appoint for the purpose but it shall not be necessary that the seal be affixed at a meeting of the directors.

A.D. 1914.
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MEETINGS OF DIRECTORS.

Rule V.

A general meeting of directors shall be held once in every week at the principal office of the Society on such day and at such hour as shall from time to time be appointed by the directors and due notice shall be given to every director of any change in such appointed day or hour.

Days of
meetings.

At the first meeting of the directors held after each annual general meeting a chairman and deputy-chairman shall be chosen from amongst them to act as such until the next annual general meeting of the members Any vacancy occurring in the office of chairman or deputy-chairman before the period of the annual general meeting of members shall be filled up by the directors at a special meeting convened for the purpose.

Chairman
and deputy
chairman.

At every meeting of the directors five shall be a quorum.

Quorum.

In case a sufficient number of directors to form a quorum shall not be present at any such meeting the directors present or if none be present then the actuary manager or secretary or any other officer of the Society for the time being shall have power to adjourn the meeting to some convenient day which adjournment being entered in the book of proceedings and signed by the directors or director actuary manager or secretary or other officer adjourning the meeting shall be deemed a full and sufficient continuance of such meeting.

Adjournment
if no quorum,

At all meetings of the directors the chairman or deputy-chairman in his absence shall take the chair and if both be absent the directors present shall elect a chairman for the day.

Chairman.

All questions in respect of which such meetings shall have power to decide shall be decided by vote The majority shall have power to bind the minority and if the votes on both sides shall be equal the chairman whether he has previously voted on the question or not shall have a casting vote.

Voting.

The directors may adjourn any meeting to such time or times as they may appoint.

Adjournment
of meeting.

A special meeting of directors may be summoned for any purpose by the chairman of the directors or any five directors upon a requisition to that effect being given to the actuary the manager or the secretary or some other officer of the society for the time being

Special
meetings.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. — accompanied by a statement of the purpose for which the meeting is to be summoned The directors being assembled by at least two days' previous notice given by the actuary the manager or the secretary or some other officer of the society for the time being to each director of the time and object of the meeting shall have full power if the number present be sufficient to form a quorum to transact any business which shall be specified in the notice of meeting.

Appointment
of com-
mittees.

The directors shall have power at any of their weekly meetings to appoint a committee from amongst the directors for any particular purpose to be specified in their book of proceedings with such powers and subject to such regulations as they shall think fit and of each such committee the chairman and deputy-chairman of the directors shall be ex-officio members with like powers and privileges at all meetings of such committee as at meetings of the directors The proceedings at the meetings of each committee shall be according to the regulations if any prescribed by the directors and in the absence of such regulations or so far as they do not extend shall so far as circumstances permit be according to the regulations for the time being in force as to the proceedings at meetings of the directors including the power of adjournment and at every meeting of a committee unless some other number be prescribed by the directors three members at least must be present Any such committee may at any time be dissolved by the directors.

PATRONS PRESIDENT VICE-PRESIDENT AND OFFICERS.

Rule VI.

Patrons pre-
sident vice-
president and
officers.

There shall be two patrons a president a vice-president a physician an actuary a manager a secretary a consulting actuary (if the appointment of such an officer be recommended by the directors) and an auditor who shall be a professional accountant.

HONORARY COUNCIL.

Rule VII.

Honorary
council may
be appointed.

The directors shall have power to appoint a certain number of the members not exceeding twenty-five to form an honorary council whose advice may be taken by the directors as and when they shall think fit and the directors may from time to time fill up vacancies on such honorary council and may remove any person from being a member of such honorary council.

May attend
meetings of
directors.

Members of the honorary council shall be entitled to attend all ordinary meetings of the directors but shall not be deemed to be directors within the meaning of any Act of Parliament relating to the society or of these rules The directors may by resolution taken at

any ordinary meeting of the directors invite the honorary council to attend in consultation a special meeting of the directors or they may refer to the said council by memorial any matter upon which they desire the opinion or advice of the said council such memorial to be signed by the chairman and four directors. A.D. 1914.

QUALIFICATION.

Rule VIII.

(1) The following persons may effect assurances on their own lives or on the lives of any other persons or any other assurance granted by the society:— Persons qualified to assure with Society.

(a) Any clergyman of the respective Churches of England and Ireland or of the Episcopal Church in Scotland;

(b) Persons related to or connected by marriage with any such clergyman;

(c) Persons who are or have been members of or on the staff of any university public school college or kindred institution in the United Kingdom which the directors may from time to time approve for this purpose;

(d) Any person holding any permanent appointment under the society and the children of any person holding or having held any such appointment.

(2) Any ecclesiastical corporation aggregate or sole may effect assurances.

(3) Any clergyman of any church in communion with the Church of England may effect assurances on his own life.

(4) Persons and corporations qualified as above may effect assurances jointly with persons or corporations not so qualified.

(5) Persons and corporations not qualified as above may effect assurances if any of the persons on whose lives such assurances are to depend are themselves so qualified.

(6) Persons not qualified as above may effect any assurance granted by the Society on the terms of non-participation in profits.

ASSURANCES GRANTED BY THE SOCIETY.

Rule IX.

The following assurances may be effected by persons and corporations qualified under Rule VIII.:— Assurances granted.

D. Whole life assurance payable on the death of the life assured ;

D2. Temporary assurance payable on the death within a specified time of the life assured ;

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914.

D4. Joint-life assurance payable on the first death among any two or more persons last survivor assurance payable on the death of the survivor of any two or more persons contingent assurance payable on the death of one person in the lifetime of another or on any other contingency of a like nature dependent upon life;

E. Endowment assurance payable on the life assured attaining a specified age or dying before attaining that age whichever event shall first occur;

F. Immediate or deferred annuity on life or any other kind of annuity dependent on life other than that under Class G;

G. Temporary annuity on the life of a child;

W. Endowment for child or other person to be due on the attainment of any specified age or at the expiration of any period from the day of the date of the assurance.

In addition to the above assurances the directors have power under the laws of the Society to grant all such assurances (with or without the right to participate in the surplus or profits of the Society) for the payment of money on the happening of any contingency or event whether dependent on or connected with life or not and to grant all such annuities as may by law be granted and as the directors may think fit to grant.

Re-assurances and maximum amount at Society's risk.

The directors have power under the laws of the Society to re-assure the whole or such part of any of the risks of the Society and to undertake such risks by way of re-assurance (being in all cases risks in respect of which the Society could for the time being themselves grant assurances) as the directors may from time to time think fit. The maximum amount of any assurance or annuity to be retained at the Society's own risk shall be in the discretion of the board.

PAYMENT OF PREMIUMS.

Rule X.

Days of grace.

One calendar month's* grace shall be allowed for the payment of the premium on any assurance.

Further term for payment.

The premium may be paid within a further term of three calendar months together with a fine equal to interest at the rate of five per cent. per annum for the period which has elapsed since the expiration of the term of grace.

When assurances null and void.

If the premium and fine be not paid within three calendar months from the day on which the term of grace expires then shall the assurance be null and void.

* Six weeks in the case of policies effected before the 1st June 1899 which bear a number less than 25,400.

[4 & 5 GEO. 5.] *Clergy Mutual Assurance Society* [Ch. clxx.]
Act, 1914.

An assurance becoming null and void shall however be renewable at any time as a matter of right without any evidence of the good health of the life assured on payment of the overdue premiums and fines equal to compound interest thereon at the rate of five per cent. per annum for the period which has elapsed since the expiration of the term of grace so long as the surrender value of the assurance exceeds the total amount of such overdue premiums and fines and of any loan advanced by the Society on the policy together with accrued interest thereon. In case of the happening of the event assured against within the period during which such an assurance might be so renewed any amount that would have become payable under the assurance if it had not become null and void shall be payable to the person who would in that event have been entitled to the benefit of the assurance subject to payment to the Society of all overdue premiums and fines and any other amount which may be due.

A.D. 1914.

Right of
renewal.

An assurance becoming null and void shall be renewable at any time within one year thereafter on production of such certificate in proof of the good health of the life assured as shall be satisfactory to the directors and on payment of the premium in arrear with a fine equal to interest at the rate of five per cent. per annum thereon for the period which has elapsed since the expiration of the term of grace notwithstanding that at the time at which the application for renewal is made the surrender value of the assurance does not exceed such total amount due to the Society as aforesaid.

In calculating the amount of a fine as above fractions of a month shall count as a whole month and the minimum amount of the fine shall be two shillings and sixpence.

No premium in respect of which a fine is due shall in any case be accepted without payment of such fine.

Provided always that the directors may from time to time make such alterations as they may think fit in the fines and periods of grace contemplated by this rule but so that any such alteration shall not prejudicially affect any policy in existence at the time of the alteration.

INVESTMENTS.

Rule XI.

The funds of the Society so far as they are not required to satisfy the immediate claims on and expenses of the Society may be laid out and invested by the directors in any of the following ways (that is to say):—

Investments.

- (1) In the purchase or on mortgage of any lands or hereditaments of any tenure in the United Kingdom or any estate or interest therein:

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914.
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- (2) On mortgage of lands or hereditaments of any tenure in India or in any British dominion colony dependency state or province or of any estate or interest therein :
- (3) In the purchase or on the security of stock of the Bank of England :
- (4) In the purchase or on mortgage of any stocks funds bonds or securities of or guaranteed by the Government of the United Kingdom India or any British dominion colony dependency state or province :
- (5) In the purchase or on mortgage of any stocks bonds or securities of any municipality municipal or other local authority or public body having power to levy rates tolls or assessments in the United Kingdom India or any British dominion colony dependency state or province :
- (6) In the purchase or on mortgage of any bonds debentures debenture stock or guaranteed or preference shares or stock of any company incorporated by Royal Charter or by any Act of Parliament of the United Kingdom or of any British dominion colony dependency state or province or in the purchase or on mortgage of any ordinary stock or fully paid up shares of any such company which shall have paid dividends on such stock or shares during each of the five years preceeding the date of investment :
- (7) In purchasing or lending money on the security of any policy of life assurance of adequate value :
- (8) In lending money on the security of any policy of the Society or of any life assurance society or company although the amount of the loan may exceed the then present value thereof provided in such case that the premium on such policy and the interest on the loan be collaterally secured by or upon any of the securities or investments above mentioned to such an amount as the directors may consider adequate :
- (9) In the purchase or upon the security of any annuities whether in perpetuity or for life or for years and whether charged upon or arising out of any of the securities or investments above mentioned or any estate or interest in the same or on the revenues of India :
- (10) In the purchase or upon the security of any vested reversionary contingent reversionary or other estate or interest in any of the securities or investments above mentioned or of any such estate or interest in any sum or sums of money secured upon any such securities or investments :

[4 & 5 GEO. 5.] *Clergy Mutual Assurance Society* [Ch. clxx.]
Act, 1914.

(11) On deposit either temporarily or for any length of time with any bank discount house firm banker or company carrying on business in the United Kingdom authorised to take money on deposit on such terms as the directors may think proper: A.D. 1914.

(12) In or upon such other investment or security as may be approved by not less than three-fourths of the directors present at the meeting of the directors at which such other investment or security is proposed (such three-fourths consisting of not less than six directors) provided that no investment shall be made in any security not fully called up or which involves any liability beyond the amount intended to be paid or advanced.

The directors shall have power from time to time to vary or transpose any of the stocks funds shares securities and investments hereinbefore mentioned in their discretion.

No money shall be invested in or upon any of the securities or investments mentioned in the above sections numbered (1) (2) (8) (9) and (10) respectively unless the title to the property comprised in the security or investment or the right or power under which such security or investment is to be made or take effect shall have been examined and approved by the counsel or the solicitor of the Society appointed by the directors and certified by his signature as effective and sufficient.

VALUATION OF ASSETS AND LIABILITIES AND DISTRIBUTION OF SURPLUS.

Rule XII.

An investigation shall be made by the actuary and also if the directors think fit by the consulting actuary (if any) into the financial condition of the Society as it may exist at the expiration of each successive period of five years reckoned from midnight of the 31st May 1836 and the surplus (if any) which shall then exist in the funds of the Society shall be ascertained. Quinquennial investigation into financial condition of Society.

And if the actuary or consulting actuary (if any) shall certify after having fully and carefully investigated the value of the assets of the Society and calculated the present value of all the liabilities of the Society under its several contracts of assurance on a sound and cautious estimate of the future that a surplus is found to be unappropriated then an assignment of such surplus or of such part thereof as the directors shall think fit shall be made to the several assurances existing at midnight of the day up to which the valuation is made and entitled to participate according to the terms of each policy in such equitable Surplus may be assigned to with profit assurances.

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. proportions as may be fixed by the directors with the advice of the actuary or consulting actuary (if any).

Application
of surplus
allotted to an
assurance.

The amount of surplus assigned to an assurance shall be appropriated in accordance with the terms of the policy or of any subsequent endorsement thereon or if there be no clause introduced into the policy or any endorsement thereon specifying in what manner the surplus is to be appropriated then at the option of the directors the surplus shall be applied towards the reduction of the premium or the increase of the sum assured. Provided that if in the case of a policy of assurance effected between the 1st May 1867 and the 7th January 1891 and containing a proviso that the surplus shall be paid to the assured notice in writing of any disposition or charge affecting such assurance or any part thereof shall have been left at the office of the Society then all surplus which after the leaving of such notice shall be assigned to such assurance shall instead of being paid to the assured be applied towards the increase of the sum assured notwithstanding that by reason of the satisfaction of such disposition or charge the notice may have been in the meantime withdrawn.

Options to
members as
to disposal of
surplus.

Every member at the time of effecting an assurance shall have the option of requiring that any share of surplus which may be allotted to his policy shall be appropriated to the increase of the sum assured or to the reduction of the premium and a provision specifying the mode selected shall be introduced into the policy but if no such option be declared at the time of effecting the assurance then any share of surplus shall be appropriated to the increase of the sum assured. If any member shall at any time be desirous of changing the mode of appropriation of his share of surplus the directors shall have power to allow the change on such conditions as they may think fit to impose. Any addition to the sum assured by a policy may be exchanged at any time for an equivalent cash payment or a reduction in the premium provided satisfactory evidence of title be forthcoming and on such other conditions as the directors may think fit to impose.

Intermediate
bonus on
endowment
assurances on
maturity.

In the case of an endowment assurance Class E effected on the terms of participating in the profits of the Society maturing by the life assured attaining the specified age in the interval between two valuation periods the directors shall pay to the person entitled to such assurance such sum as in their opinion may be an equitable allotment in respect of the time elapsed since the date of the last appropriation of surplus.

Interim
bonus at
death.

The directors are under the laws of the Society empowered if and when they think fit to assign to any assurance effected on terms of participation in profits and becoming a claim before the expiration of any current quinquennial period a proportionate or interim bonus in respect of the time elapsed since the last allotment of bonus and to

[4 & 5 GEO. 5.] *Clergy Mutual Assurance Society* [Ch. clxx.]
Act, 1914.

make provision as to the time and method of paying or crediting such proportionate or interim bonus to the person entitled to the benefit of such assurance. A.D. 1914.
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Every decision of the directors as to the application of any such surplus as aforesaid or on any other matter or thing under this rule shall be final and conclusive. Decision of directors as to an appropriation to be final.

FORFEITURE OF ASSURANCE.

Rule XIII.

If it shall be found that in any proposal or declaration made by the assured at the time of proposing for an assurance there was any fraudulent statement or omission the assurance shall be null and void and all moneys paid in respect of the same shall be forfeited. Policy null and void in case of fraud.

An assurance shall (unless the policy shall otherwise provide) become null and void if the life assured shall commit suicide within one year from the date of the policy provided nevertheless that the bonâ fide interests of third parties shall be fully protected from the date of the policy. Policy null and void if suicide within one year.

The directors shall have power to require and accept any proof satisfactory to them of the age of the life assured referred to in any such proposal or declaration. Proof of age.

PURCHASE AND REDUCTION OF ASSURANCES.

Rule XIV.

In case of the whole or any part of any assurance being surrendered at any time the directors shall in consideration of such surrender make such payment as in their sole discretion they shall consider equitable. Cash surrender value

Instead of a cash payment on surrender the policy may be converted into a policy for a reduced amount free from the payment of any further ordinary premium. Paid up assurances.

Two or more new assurances for amounts together equal to that assured by the original assurance may be granted in exchange for such original assurance. Substitution of other assurances.

ARBITRATION.

Rule XV.

Every matter in dispute between the Society or any officer or person acting under or on behalf of the Society and any member or any person claiming through any member shall be referred to arbitration. Arbitration.

1322
6

[Ch. clxx.] *Clergy Mutual Assurance Society* [4 & 5 GEO. 5.]
Act, 1914.

A.D. 1914. — traction under the Arbitration Act 1889 or any statutory modification thereof.

NOTICES.

Rule XVI.

Notices. Any circular or notice or other document which may by any statutory provision for the time being applicable to the Society or these rules be required to be sent to any member or any person claiming under him may be addressed and sent to such member at his registered address and any notice so addressed and sent shall (whether the member shall be living or not) be deemed and taken to be notice to every person for the time being interested in every assurance of such member.

CONSTRUCTION.

Rule XVII.

Construction. In the construction of these rules and regulations except where there is anything in the subject or context repugnant to such construction the word "assured" shall mean "member" and words importing the singular number only shall include the plural number and words importing the plural number only shall include the singular number and words importing the masculine gender only shall include females and the word "month" shall mean "calendar month" and the word "person" shall include "corporation."

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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